

TENTATIVE RULING FOR CIVSB2529329
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Burrtec Waste Industries v. The Boston Group, Inc., et al

Motion: (1) Writ of Attachment
(2) Motion for Attachment Deposition of Person Most Knowledgeable

Movant: Burrtec Waste Industries (Burrtec/Plaintiff)

Respondent: The Boston Group, Inc. (Boston Group/Defendant)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On October 6, 2025, Burrtec initiated the instant action against Boston Group, Kevin Kodzis, Kevin Kodzis, Jr. (collectively, Defendants) and Does 1-10. The operative Complaint alleges five causes of action for: (1) breach of contract, (2) accounts stated, (3) open book account, (4) quantum valebant and (5) fraud.

Plaintiff alleges it, along with its “sister company” EDCO Disposal Corporation (EDCO) own and operate solid-waste companies in California. In late 2024 to early 2025, Defendants submitted numerous purchase orders to Plaintiff seeking to purchase recycled products from Burbank Recycling Center, East Valley Recycling & Transfer, Victor Valley MRF, West Valley MRF, Agua Mansa MRF, and Metropolitan Recycling, LLC. Plaintiff accepted these purchase orders, sold and delivered these recycled products to Defendants as requested, and invoiced Defendants for the agreed upon price per ton for these products accordingly.

At the same time, Plaintiff alleges Defendants also submitted numerous purchase orders to EDCO and its “related entity”, SANCO Services, L.P. (SANCO) offering to purchase the same type of recycled products from these entities. EDCO and SANCO also accepted these purchase orders, sold and delivered the recycled products to Defendants as requested, and invoiced Defendants for these products. Plaintiff alleges without any legal justification or excuse, however, Defendants failed to pay the invoices for the products that it purchased and received.

On September 15, 2025, Agua Mansa, West Valley, Metropolitan, EDCO and SANCO assigned to BWI all of their right, title and interest in and to any and all claims it holds against Defendants in relation to these delinquent accounts. As a result, Plaintiff is the legal owner and

holder of the claims asserted herein and entitled to pursue this action for damages and other relief as set forth herein. The instant action ensued.

On February 5, 2026, Plaintiff filed the instant Application for Order for Issuance of Writ of Attachment (Motion). Defendant opposes. On February 5, 2026, Plaintiff also filed a Motion for Attachment Deposition of the Person Most Knowledgeable (PMK) of Defendant The Boston Group (Deposition Motion). While no opposition was filed for the Deposition Motion, if the Motion is denied then so too is the Deposition Motion.

ANALYSIS

Writ of Attachment

Attachment is a prejudgment remedy that allows a creditor to have a lien on the debtor's assets until final adjudication of the claim sued upon. (Code Civ. Proc., §§482.010 et seq.) The creditor must follow statutory guidelines in applying for the attachment and establish a prima facie claim to have the debtor's assets seized and held until final adjudication at trial. (*Lorber Industries of Calif. v. Turbulence, Inc.* (1985) 175 Cal.App.3d 532, 535.) The trial court is required to make a preliminary determination of the merits of the dispute. (*Ibid.*)

Although official forms are used for almost every attachment procedure, a plaintiff's application must be supported by an affidavit showing that on the facts presented, he would be entitled to a judgment on the claim. (Code Civ. Proc., §§482.030, 484.030.) Furthermore, section 482.040 of the Code of Civil Procedure states:

The facts stated in each affidavit filed pursuant to this title shall be set forth with particularity. Except where matters are specifically permitted by this title to be shown by information and belief, each affidavit shall show affirmatively that the affiant, if sworn as a witness, can testify competently to the facts stated therein. As to matters shown by information and belief, the affidavit shall state the facts on which the affiant's belief is based, showing the nature of his information and the reliability of his informant. The affiant may be any person, whether or not a party to the action, who has knowledge of the facts. A verified complaint that satisfies the requirements of this section may be used in lieu of or in addition to an affidavit. (Code Civ. Proc., § 482.040.)

Code of Civil Procedure section 484.090 provides that for the court to issue a right to attach order after a noticed hearing it must find all of the following:

- (1) The claim upon which the attachment is based is one upon which an attachment may be issued.
- (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

- (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.
- (4) The amount to be secured by the attachment is greater than zero.

The plaintiff bears the burden that his claim is one in which an attachment may be issued and the probable validity of his claim. (*Kemp Bros. Const., Inc. v. Titan Elec. Corp.* (2007) 146 Cal.App.4th 1474, 1481.) Whether the attachment right exists is determined by the pleadings and papers in the record. (*Goldstein v. Barak Construction* (2008) 164 Cal.App.4th 845, 852.)

As to whether the claim is a proper subject of an attachment, the Complaint pleads a breach of contract cause of action that seeks to recover a \$631,173.22. Defendant argues the amount is not ascertainable as there is no evidence of any purchase orders issued by Boston Group and Plaintiff is subject to several unresolved counter claims for credits due to the quality and/or quantity of recyclable materials sold by West Valley MRF, LLC, Burbank Recycling Center and Victor Valley MRF. Generally, an attachment may be issued only in an action on a claim for money based upon a contract where the total amount is fixed or readily ascertainable amount that is not less than \$500. (Code Civ. Proc., §483.010, subd. (a).) Plaintiff's attachment request is based on a proper claim related to an ascertainable amount that exceeds \$500.

As to whether there is a probable validity of prevailing, a claim has probable validity when "it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc., §481.190.) This determination is within the discretion of the trial court. (*Loeb & Loeb v. Beverly Glen Music, Inc.* (1985) 166 Cal.App.3d 1110, 1120.) A breach of contract claim requires (a) the existence of a contract, (b) the plaintiff's performance or excuse for performance, (c) the defendant's breach or anticipatory breach, and (d) resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) In the case at hand, the court finds the evidence supports a finding that Plaintiff has a probability of prevailing on its claim for \$631,173.22. Defendant argues that Plaintiff's invoices are, at best, evidence of only one side of a binding contract between parties. Defendant's argument is unpersuasive. A party may accept a contract by conduct. (Cal. Civ. Code § 1698; see also *Calvary SPV I, LLC v. Watkins* (2019) 36 Cal.App.5th 1070, 1081). The Defendant does not dispute that it received the subject recyclable materials. Instead, Defendant argues the amount owed should be reduced pursuant to claims it filed with the Plaintiff due to alleged issues with the recyclable materials pertaining to excessive moisture, improper material inclusions and/or short weights.

As to the issue of whether the attachment is being sought for a purpose other than the recovery on the claim upon which the attachment is based, Defendant advances no evidence that such an alternative purpose exists.

There is no dispute that the amount to be secured exceeds zero.

Finally, as to the amount of the undertaking, Defendant objects to the \$10,000 amount set forth under section 489.220, subdivision (a). Under subdivision (b) of section 489.220, the court shall order the amount of the undertaking increased to the amount it determines to be the probable recovery for wrongful attachment. Defendant requests an amount equal to the amount of the attachment that Plaintiff seeks. The court finds the undertaking amount proposed by Plaintiff to be appropriate.

RULING

1. Plaintiff's Objections 2, 3, 4, and 5 are SUSTAINED. Objection 1 is OVERRULED.
2. Motion for Writ of Attachment is GRANTED. Court shall sign order provided.
3. Motion Attachment Deposition of Person Most Knowledgeable is GRANTED. Court shall sign order provided.
4. Movant to give Notice.